

26PR00738 Estate of Gayle Denise Davis

County: sonoma

Division: Probate

Hearing date: 2026-07-24

Motion: Letters of Administration

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Estate of Gayle Denise Davis

26PR00738

Letters of Administration

Tentative Ruling: NO APPEARANCES REQUIRED. The petition is DENIED as petitioner has not established standing to bring this petition. Only an "interested person" may petition to commence probate of an estate of a decedent. Probate Code section 8000. An interested person includes:

(1) An heir, devisee, child, spouse, creditor, beneficiary, and any other person having a property right in or claim against a trust estate or the estate of a decedent which may be affected by the proceeding.

(2) Any person having priority for appointment as personal representative.

(3) A fiduciary representing an interested person.

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Probate Code § 48. Here, petitioner does not allege facts establishing any of the above. And while some flexibility is acknowledged in determining the question of standing, to be an interested party the person must, at a minimum, hold some beneficial interest: "In general, [t]o have standing, a party must be beneficially interested in the controversy, and have some special interest to be served or some particular right to be preserved or protected. [Citation.] This interest must be concrete and actual and must not be conjectural or hypothetical." *Hamlin v. Jendayi*, (2024) 105 Cal.App.5th 1064, 1074, as modified on denial of reh'g (Nov. 12, 2024), review denied (Jan. 15, 2025) (internal quotes omitted).